IN THE COURT OF THE CIVIL JUDGE (SENIOR DIVISION), NAGPUR
SPECIAL CIVIL SUIT NO. 342 OF 2023

Shri Prakash Ramrao Joshi ... Plaintiff

Versus

Shri Sandeep Ashok Kulkarni ... Defendant

WRITTEN STATEMENT ON BEHALF OF THE DEFENDANT
(Filed under Order VIII Rule 1 of the Code of Civil Procedure, 1908)

The Defendant most respectfully submits as under:

PRELIMINARY OBJECTIONS

1. That the suit as framed is not maintainable in law or on facts and is liable to be dismissed with costs.

2. That the suit is barred by limitation, the alleged cause of action having arisen in the year 2019 and not on 08/11/2022 as pleaded.

3. That the dispute between the parties is covered by an arbitration clause contained in clause 14 of the Partnership Deed dated 12/04/2019, and the suit is therefore barred by Section 8 of the Arbitration and Conciliation Act, 1996.

4. That the plaint is undervalued and the court fee paid is deficient.

PARA-WISE REPLY

5. That the contents of paragraph 1 of the plaint are admitted only to the extent of the execution of the Partnership Deed. The rest is denied.

6. That the contents of paragraph 2 of the plaint are false and are specifically denied. The capital contribution of the Defendant was Rs. 22,00,000/- and not Rs. 10,00,000/- as falsely alleged.

7. That the contents of paragraph 3 of the plaint are denied. The withdrawals referred to were made with the express consent of the Plaintiff and were applied towards the firm's liabilities.

8. That the contents of paragraph 4 of the plaint are denied. No cause of action whatsoever has accrued to the Plaintiff.

It is therefore prayed that the suit be dismissed with costs.

Nagpur
Dated: 12/07/2023

Advocate for the Defendant
Smt. Vaishali Deshpande
Enrolment No. MAH/5678/2010

VERIFICATION

I, Sandeep Ashok Kulkarni, the Defendant above named, do hereby verify that the contents of paragraphs 1 to 8 are true to my knowledge.
Verified at Nagpur on this 12th day of July, 2023.